

The Governor

*The Constitution of India envisages the same pattern of government in the states as that for the centre, that is, a parliamentary system. **Articles 153 to 167 in part VI** of the constitution deal with the Government of the state. *The Governor is the executive head of the state. Generally, a person is the governor of only one state and after the **7th Constitutional Amendment Act of 1956**, the same person can be appointed as the governor of two or more than two states. *The Governor is appointed by the President of India (Article 155). *He holds office for a term of 5 years from the date on which he enters upon his office. *However, his tenure is subjected to the pleasure of the President [Article 156(1)]. *Further he can resign at any time by addressing a resignation letter to the President [Article 156(2)]. *According to Article 157 the qualifications for the post of the Governor are - (i) He should be a citizen of India, and (ii) age over 35 years. Jammu & Kashmir reorganisation Act 2019 reorganised the state of Jammu & Kashmir into : (i) the Union territory of Jammu & Kashmir with a legislature, and (ii) the Union Territory of Laddakh without a legislature. Both the newly created Union Territory will be administered by the President through a Lieutenant Governor appointed by him. *All the executive works of the state is formally done in the name of the Governor. *The Chief Minister of Union territory of Delhi is appointed by the President (**Article 239 AA**). *The salary, wages and other expenditures related to the Governor is charged upon the Consolidated Fund of each state [Article 202(3)(A)]. *The Governor has the power to appoint the Chief Minister and the Council of Ministers on the advice of the Chief Minister [Article 164(1)]. *He is an integral part of State Legislative Assembly and has the right of addressing and sending messages and of summoning/proroguing and dissolving the State Assembly. *The Governor has the right to **nominate one-sixth member of the legislative council.** **Governor** of a state, if he is of the opinion that the Anglo-Indian community needs representation in the Legislative Assembly of the state and is not adequately represented therein, could nominate one member of that community to the Assembly. It is noteworthy that the arrangements of nominating representatives of the Anglo-Indian community in the state Legislative

Assemblies have not been extended beyond the stipulated date (25 January, 2020) by 'The Constitution (One Hundred and Fourth Amendment) Act, 2019. Thus, the arrangements of nomination of one member of the Anglo-Indian Community in the Legislative Assemblies has ended. *A person who has the qualification for the judge of a High Court can be appointed as the Advocate General by the Governor (**Art. 165**). *When a bill is sent to the Governor after it is passed by State Legislature, he can give his assent to the bill, or return the bill (if it is not money bill) for reconsideration. *However if the bill is passed again by the state legislature the governor has to give his assent to the bill. *According to **Article 201** if a bill is reserved by the Governor for the consideration of the President then the President will declare whether to give assent to the bill or not. ***Article 202 (3) (a)** the emoluments and allowances of the Governor and other expenditure relating to office are charged on the consolidated fund of the state. *The Governor can promulgate an ordinance when the state legislature is not in session (**Article 213**). *He can grant pardons, reprieves, respites and remission of punishment or suspend, remit and commute the sentence of any person convicted of any offence against any law relating to a matter to which the executive power of the state extends (**Article 161**). ***Sarojini Naidu** was the first woman to be nominated as the Governor of any state. *She was the governor of Uttar Pradesh from 15th August, 1947 to 2 March, 1949.

1. **The original plan in the draft Constitution for having elected Governors was dropped because**
 1. It would have meant another election.
 2. The election would have been fought on major political issues.
 3. The elected Governor might have considered himself superior to the Chief Minister.
 4. The Governor had to function under the Parliamentary System.

Select the correct answer from the code given below:

Code :

- | | |
|----------------|----------------|
| (a) 1 and 2 | (b) 2 and 3 |
| (c) 1, 3 and 4 | (d) 2, 3 and 4 |

U.P.U.D.A./L.D.A. (Pre) 2002

U.P.P.C.S. (Pre) 2003

U.P.P.C.S. (Mains) 2004

Ans. (c)

There was much debate in the Constituent Assembly regarding the subject of the appointment or election of Governor in the States. Krishnamachari, B.G. Kher, J. B. Pant were in favour of election, while B. R. Ambedkar, Jawaharlal Nehru were in favour of nominated Governor. Finally with general consensus, the provision of nominated Governor was accepted and the original proposal for the provision of elected Governor was cancelled as- (1) this would have increased election expenditure. (2) Nomination of governor would help avoiding clash of political ambition of the Chief Minister and the Governor as the election would have been fought on major issues, they would have pursued different policies. (3) The Centre would not have effective control over the State otherwise.

2. Who is the Constitutional Head of the State Governments?

- (a) Chief Minister (b) Governor
(c) Speaker (d) High Court Judge

53rd to 55th B.P.S.C. (Pre) 2011

45th B.P.S.C. (Pre) 2001

Ans. (b)

See the explanation of the above question.

3. State Governor is appointed by –

- (a) Central Cabinet
(b) Chief Justice of Supreme Court
(c) Speaker of Lok Sabha
(d) President of India

U.P.P.C.S.(Pre) 2012

Ans. (d)

See the explanation of the above question.

4. The Governor of a State is appointed by

- (a) the Prime Minister
(b) the Chief Justice of India
(c) the President
(d) the Chief Justice of the High Court

64th B.P.S.C. (Pre) 2018

Ans. (c)

See the explanation of the above question.

5. The appointment of a Governor in a State is made as per the provision in the Constitution under Article –

- (a) 153 (b) 154
(c) 155 (d) 156

U.P.P.C.S. (Pre) 2015

Ans. (c)

See the explanation of the above question.

6. Consider the following statements in relation to Governor of a State in India –

- (1) He must be a citizen of India by birth.
(2) Must have completed the age of 35 years.
(3) He must be eligible to be a member of the Lok Sabha.
(4) He may be appointed as Governor for two or more states.

Which of these is/are correct –

- (a) 1 and 2 are correct
(b) 1,2 and 3 are correct
(c) 1,2 and 4 are correct
(d) 2 and 4 are correct

U.P. Lower Sub. (Pre) 1996

Ans. (d)

The Governor is the Executive head of a State appointed by the President. According to Article 157, any person who is a citizen of India and has completed the age of 35 years shall be eligible for appointment as a Governor of a State. Citizenship by birth is not a requirement. According to Article 158, the Governor shall not be a member of either House. Thus it is not necessary that the Governor must have the eligibility to be a Member of the Lok Sabha. The Seventh Amendment Act, 1956 provided that a person is eligible to be appointed as Governor for two or more States. Thus, statement (2) and (4) are true, and option (d) is correct.

7. Which one of the following Article in the Indian Constitution prescribes the qualifications for appointing a person as Governor of a State in India?

- (a) Article 156 (b) Article 157
(c) Article 159 (d) Article 160

Jharkhand P.C.S. (Mains) 2016

Ans. (b)

See the explanation of the above question.

8. Consider the following and select the correct answer by using the code given below:

- (1) The Governor shall take oath or affirmation before entering upon his office.
(2) The format of oath or affirmation is given in the Third Schedule of Indian Constitution.
(3) The Governor shall make and subscribe the oath or affirmation in the presence of Chief Justice of the High Court or in his absence senior most Judge of that Court.

(4) The process of oath and affirmation is given in Article 159 of Indian Constitution.

Code :

- (a) (1), (2) and (3) (b) (1), (3) and (4)
(c) (1), (2) and (4) (d) (1), (2), (3) and (4)

R.A.S./R.T.S.(Pre) 2013

Ans. (b)

Every Governor and every person discharging the functions of the Governor shall, before entering upon his office, make and subscribe in the presence of the Chief Justice of the High Court exercising jurisdiction in relation to the State or in his absence, the senior most Judge of that Court available, an oath or affirmation in the prescribed form as provided in Article 159 of the Indian Constitution. 3rd Schedule does not deal with the oath of the Governor.

9. Who amongst the following administer the oath of office to the Governor?

- (a) President of India
(b) Chief Justice of Supreme Court
(c) Chief Justice of High Court
(d) Outgoing Governor of the concerned State

U.P.P.C.S. (Mains) 2014

U.P. Lower Sub. (Mains) 2013

Uttarakhand P.C.S. (Pre) 2012

Ans. (c)

See the explanation of the above question.

10. Which one of the following is not correctly matched?

- (a) Article 153 – Office of the Governor
(b) Article 154 – Executive Authority of the Governor
(c) Article 155 – Removal of the Governor
(d) Article 156 – Term of the Governor

U.P.P.C.S. (Pre) 2024

Ans. (c)

Under the given Articles of the Constitution of India, according to Article 153, there shall be a governor for each state. According to the Article 154(1), the executive power of the state shall be vested in the Governor and shall be exercised by him either directly or through officers subordinate to him in accordance with this constitution. The Article 155 is related with the appointment of governors, which provides that, the Governor of a state shall be appointed by the President by warrant under his hand and seal. The Article 156 provides for- Term of office of the Governor. According to Article 156(1) - the Governor holds office during the pleasure of the President, and Article 156(3) provides that usually the Governor is appointed for a term of five years.

The President may remove a Governor from his office prior to the completion of five year term as the Governor holds the post during the pleasure of the President. Hence, the pair in the option (c) is not-correctly matched, while other options contain correctly matched pairs.

11. The Governor of a State

- 1. Is appointed by the President.**
- 2. Holds office during the pleasure of the President.**
- 3. Is the head of the State's Executive Power.**
- 4. Normally holds office for five years.**

Select the correct answer from the codes given below:

Code :

- (a) 1 and 2 (b) 1, 2 and 3
(c) 1, 2 and 4 (d) All the four

U.P.P.S.C. (GIC) 2010

U.P.P.C.S. (Mains) 2004

Ans. (d)

See the explanation of the above question.

12. Given below are two statements, one is labelled as Assertion (A) and the other as Reason (R).

Assertion (A) : According to the Constitution of India, the same person cannot function as the Governor of two or more States at the same time.

Reason (R) : Article 153 of the Indian Constitution states that there shall be a Governor for each State.

Select the correct answer from the codes given below:

- (a) Both (A) and (R) are true, but (R) is not the correct explanation of (A).
(b) (A) is false, but (R) is true.
(c) Both (A) and (R) are true and (R) is the correct explanation of (A).
(d) (A) is true, but (R) is false.

U.P.P.C.S. (Pre) 2024

Ans. (b)

According to Article 153 of the Constitution, There shall be a Governor for each State. The Seventh Constitutional Amendment Act, 1956 added further in this Article that, nothing in this Article shall prevent the appointment of the same person as Governor for two or more States. Therefore, the same person can function as the governor of two or more States at the same time. Hence, Assertion (A) is incorrect, but the Reason (R) is correct. The option (b) is the correct answer.

13. Which one of the following statements about the Governor of an Indian State is not true:

- (a) He is appointed by the President of India
- (b) He can be Governor of more than one State
- (c) He holds office for a term of five years
- (d) He can be removed earlier if the Legislature of the concerned State passes a resolution for his removal.

U.P. Lower Sub. (Pre) 2004
U.P.P.C.S. (Pre) 1997

Ans. (d)

According to Article 156(1) of the Constitution, a Governor of a State is an appointee of the President, and he or she holds office "during the pleasure of the President." If a Governor continues to enjoy the "pleasure of the President," he or she can hold the office for a term of five years. A Governor may be removed anytime before the completion of five-year, by the President on the advice of the Council of Ministers, but the State Legislature has no such power.

14. Article 156 of the Constitution of India provides that a Governor shall hold office for a term of five years from the date on which he enters upon his office. Which of the following can be deduced from this.

- 1. No Governor can be removed from office till the completion of his term
- 2. No Governor can continue in office beyond the expiration of a period of five years.

Code :

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre) 1995

Ans. (d)

Article 156 deals with the term of office of the Governor (1) the Governor shall hold office during the pleasure of the President. (2) The Governor may, by writing under his hand addressed to the President, resign his office. (3) Subject to the foregoing provisions of this Article, a governor shall hold for a term of five years from the date on which he enters upon his office. (4) Provided that a Governor shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon his office. Thus both statements are wrong.

15. To whom is the Governor of a State responsible?

- (a) Prime Minister
- (b) President
- (c) Legislative Assembly
- (d) Chief Minister

U.P.P.C.S. (Pre) 1992

Ans. (b)

Under our Constitution, the Governor is the head of a State and is appointed by the President of India. Under Article 156(1), he /she holds office at the pleasure of the President, which in effect means the Union Government. A Governor's term of office under Article 156(3) is five years, subject to the pleasure of the President.

16. Who remains in office as long as the President of India wishes?

- (a) Governor
- (b) Election Commissioner
- (c) Judges of Supreme Court
- (d) Speaker of Lok Sabha

M.P.P.C.S. (Pre) 2006
U.P.P.C.S. (Mains) 2004

Ans. (a)

See the explanation of the above question.

17. Which one of the following statements is correct?

- (a) In India, the same person cannot be appointed as Governor for two or more states at the same time
- (b) The Judges of the High Court of the States in India are appointed by the Governor of the State just as the Judges of the Supreme Court are appointed by the President.
- (c) No procedure has been laid down in the Constitution of India for the removal of a Governor from his/her post.
- (d) In the case of the Union Territory having a Legislative set up the Chief Minister is appointed by the Lt. Governor on the basis of majority support.

I.A.S. (Pre) 2013

Ans. (c)

Statement (a) is incorrect because according to Article 153 of the Constitution, the same person can be appointed as a Governor of two or more States. Statement (b) is also incorrect because the Judges of both the Supreme Court and the High Courts are appointed by the President though, in the case of the High Court, he also considers the advice of the Governor. Statement (d) is also incorrect because in the case of a Union Territory with a Legislative setup the Chief Minister is appointed by the President and not by the Lt. Governor. Statement (c) is correct. There is no procedure laid down in the Constitution for the removal of the Governor. Though ordinarily, he has a tenure of 5 years and holds the office during the pleasure of the President.

18. Who appoints the Governor of Jammu & Kashmir?

- (a) The Chief Minister of Jammu & Kashmir
- (b) The Chief Justice of High Court of Jammu & Kashmir

- (c) The Prime Minister of India
- (d) The President of India

47th B.P.S.C. (Pre) 2002

Ans. (d)

Under Part XXI of the Constitution of India, which deals with "Temporary, Transitional and Special Provisions," the State of Jammu and Kashmir has been accorded special status under **Article 370**. Prior to 1965, head of the Executive was elected by the Legislative Assembly of Jammu and Kashmir but by an amendment to the State Constitution, this dissimilarity was removed. The Executive head is now known as Governor in place of Sadar-e-Riyasat and is appointed by the President of India. Now, after its reorganisation in 2019, the two newly created Union territories are administered by the President through Lieutenant Governors appointed by him.

19. The nomenclature of the Executive Head of the Government of Jammu and Kashmir was changed from Sadar-e-Riyasat to Governor in 1965 by

- (a) A Lok Sabha Resolution
- (b) The Executive Order of the President
- (c) The 6th Amendment in the State Constitution of J & K.
- (d) The State Government under Article 371.

U.P.P.C.S. (Mains) 2007

Ans. (c)

According to the 6th Amendment in the Constitution of the State of Jammu and Kashmir, the nomenclature of the Executive Head of the Government of Jammu and Kashmir was changed from 'Sadar-e-Riyasat' to 'Governor' in 1965. Under the Jammu and Kashmir Reorganisation Act, 2019 a provision has been made to administer the union territory of Jammu and Kashmir and Ladakh by the President through the Lieutenant Governor appointed by him.

20. Which of the following recommended the post of Rajpramukh to be abolished in Rajasthan and the arrangement of the Governor was made instead?

- (a) State Legislative Assembly
- (b) Constituent Assembly
- (c) State Reorganization Commission
- (d) State Administrative Reforms Commission
- (e) Question not attempted

Raj. P.C.S. (Pre) 2023

Ans. (c)

Rajpramukh was an administrative title in India that existed since India's independence in 1949 until 1956. Based on the recommendations of the States Reorganisation Commission (constituted by the Central Government in December 1953, comprising Justice Fazal Ali, K. M. Panikkar and H. N. Kunzru, to recommend the reorganization of state boundaries), the institution of Rajpramukh was abolished by 7th constitutional amendment with effect from 1st November 1956. Shri Gurumukh Nihal Singh was appointed as the first Governor of Rajasthan on 25th October 1956.

21. Union Territories in India are administered by:

- (a) The President
- (b) The Lt. Governor
- (c) Home Minister
- (d) Administrator

U.P.P.C.S. (Pre) 1995

Ans. (a)

According to Article 239(1)- Save as otherwise provided by the Parliament by law, every Union Territory shall be administered by the President acting, to such extent as he thinks fit, through an administrator to be appointed by him with such designation as he may specify.

22. Who among the following was the first Lieutenant Governor of newly created Union Territory of Jammu & Kashmir?

- (a) Radha Krishan Mathur
- (b) Girish Chandra Murmu
- (c) Manoj Sinha
- (d) Satyapal Malik

Uttarakhand P.C.S. (Pre) 2021

Ans. (b)

Girish Chandra Murmu was the first Lieutenant Governor of newly created Union Territory of Jammu & Kashmir. On August 7, 2020, Manoj Sinha assumed charge of 2nd Lieutenant Governor of Jammu and Kashmir.

23. Who is appointed as first Lieutenant Governor of the Union Territory of Ladakh?

- (a) Girish Chandra Murmu
- (b) Radha Krishna Mathur
- (c) Satya Pal Malik
- (d) N.N. Vohra

Chhattisgarh P.C.S. (Pre) 2019

Ans. (b)

The first Lt. Governor of the Union Territory of Ladakh was Radha Krishna Mathur, who assumed charge on 31 October, 2019. At present, Lt. governor of Ladakh is B.D. Mishra who assumed the office in February, 2023.

24. Governor's salary and allowances are given by-

- (a) Consolidated Fund of State.
- (b) Consolidated Fund of India.
- (c) Contingency Fund of the State.
- (d) Both (a) and (b)

Jharkhand P.C.S. (Pre) 2003

Ans. (a)

The emoluments and allowances of the Governor and other expenditures relating to his office are charged on the Consolidated Fund of each State enumerated in Article 202 (3)(a).

25. When the same person is appointed as a Governor of two or more States, the emoluments and allowances payable to the Governor shall be –

- (a) As expressed wish of the Governor
- (b) As decided by the President
- (c) As decided by the Home Ministry
- (d) It shall be allocated among the States in such proportion as the President may by order determine.

U.P.P.C.S. (Mains) 2016

Ans. (d)

According to Article 158(3A) of the Indian Constitution, when the same person is appointed as Governor of two or more States, the emoluments and allowances payable to the Governor shall be allocated among the States in such proportion the President may by order determine.

26. Which of the following are the discretionary powers given to the Governor of a State?

1. Sending a report to the President of India for imposing the President's Rule
2. Appointing the Ministers
3. Reserving certain bills passed by the State Legislature for consideration of the President of India
4. Making rules to conduct the business of the State Government

Select the correct answer using the codes given below.

- (a) 1 and 2 only
- (b) 1 and 3 only
- (c) 2, 3 and 4 only
- (d) 1, 2, 3 and 4

I.A.S. (Pre) 2014

Ans. (b)

According to Article 356 of the Indian Constitution, the report is sent by the Governor to the President that situation has arisen in which the Government of the state cannot be carried on in accordance with the provisions of the constitution, the President may impose President Rule in that State. The making of a report by Governor to President is a discretionary power of the Governor. Thus, statement 1 is correct.

According to Article 200- When a Bill is passed by the Legislature or by both Houses of Legislature, it shall be presented to Governor and the Governor shall either give consent to the Bill or withhold the consent or reserve the Bill for the consideration of the President. It is also the discretionary power of the Governor thus statement 3 is also correct.

Whereas the appointment of Ministers is made by Governor on the advice of Chief Minister under Article 164(1) of the Constitution. Therefore, it is not the discretionary power of Governor and Article 166(3) of the Indian Constitution provides that Governor shall make rule for more convenient transactions of Business of the State Legislature but not related to any business of the Constitution on which Governor acts. So it is also not the discretionary power of Governor. So statements 2 and 4 are wrong.

27. The governor of the state, may act independently from the consultation of Legislative Assembly when -

- (1) The Government has to prove its majority in the session of Legislative Assembly.
- (2) To terminate the Chief Minister.
- (3) To reserve any bill for the consideration of President of India.
- (4) To send back a bill to Legislative Assembly for reconsideration.
- (5) To seek the consultation with High Court.

Choose the correct answer from the following code:

Code :

- (a) 1,2,3 and 4
- (b) 2,3,4, and 5
- (c) 1, 2,4 and 5
- (d) all of these

U.P.P.C.S. (Mains) 2006

Ans. (a)

The Governor of a state can act according to his discretion in the following situations

- (i) To ask the Government to prove majority in the State Legislative Assembly.

- (ii) To terminate a Chief Minister who has lost confidence of the Assembly.
- (iii) To provide or with-hold assent to a Bill or reserve a Bill for the consideration of the President. (Art. 200)
- (iv) To return a Bill to the Legislative Assembly for reconsideration (Provision of article 200)

Besides, the Governor uses his discretion while imposing President's rule in the State and dissolving the State Legislature. The Governor however has not been authorized to consult the High Court. Therefore option (a) is correct.

28. By which time Governor has to return an ordinary bill to the concerned State Legislature for reconsideration ?

- (a) Three months
- (b) One Month
- (c) No time limit
- (d) Two months

70th B.P.S.C. Pre-2024

Ans. (c)

Under the Article 200 of the Constitution, the Governor can return any ordinary bill (excluding money bills) for reconsideration by the concerned State Legislature after presenting all bills for his approval. However, the term 'as soon as possible' is not explicitly defined by the Constitution and is subject to the Governor's discretion. Therefore, option (c) is the correct answer.

29. Under which of the following Article of Indian Constitution the Governor may reserve a Bill for the consideration of the President?

- (a) Article 169
- (b) Article 200
- (c) Article 201
- (d) Article 202

U.P. Lower Sub. (Pre) 2004

Ans. (b)

See the explanation of the above question.

30. Under which Article of the Indian Constitution, the Governor reserves a Bill passed by the State Legislature for President's consideration?

- (a) Article 199
- (b) Article 200
- (c) Article 201
- (d) Article 356

Chhattishgarh P.C.S. (Pre) 2024

Ans. (b)

See the explanation of the above question.

31. Under which Article of the Constitution can the Governor refer any Bill for the approval of the President?

- (a) Article 166
- (b) Article 200

- (c) Article 239
- (d) Article 240
- (e) None of the above

Chhattisgarh P.C.S. (Pre) 2015

Ans. (b)

See the explanation of the above question.

32. Under the Constitutional provision on Bill, recommendation of the Governor was required but without recommendation of Governor it was introduced in Rajasthan Legislative Assembly and passed by it and sent to the Governor, now

- (a) where assent to that Act was given by Governor shall not be invalid.
- (b) The Governor can refuse to assent on the ground of the violation of Constitutional provisions.
- (c) The Governor will send such a Bill to the assent of the President.
- (d) The Governor or the President assents it then the court will declare it unconstitutional provisions.

R.A.S/R.T.S (Pre) - 2018

Ans. (a)

Under the Constitutional provision on a Bill, recommendation of the Governor was required, but without recommendation of Governor it was introduced in Rajasthan Legislative Assembly and passed by it and sent to the Governor, now where, assent to that Act was given by Governor shall not be invalid.

33. Which among the following Articles of the Indian Constitution empowers the Governor to issue the ordinance?

- (a) Art. 208
- (b) Art. 212
- (c) Art. 213
- (d) Art. 214

U.P. P.C.S. (Mains) 2017

Ans. (c)

Article 213 of the Constitution prescribes the power of Governor to promulgate Ordinance. It shall have the same force and effect as an Act of the Legislature of the State assented by the Governor, but every such Ordinance shall be laid before the Legislative Assembly of the State, or where there is a Legislative Council in the State, before both the Houses, and shall cease to operate at the expiration of six weeks from the reassembly of the Legislature, or if before the expiration of that period a resolution disapproving it, is passed by the Legislative Assembly and agreed to by the Legislative Council, if any, upon the passing of the resolution or, as the case may be, on the resolution being agreed to by the Council.

34. The Governor of a State can promulgate ordinance during recess of Legislature under which of the following Articles of the Constitution?

- (a) Article 123 (b) Article 213
(c) Article 220 (d) Article 219

U.P. R.O./A.R.O. (Mains) 2016

Ans. (b)

See the explanation of the above question.

35. The approval of ordinance promulgated by Governor is necessary -

- (a) By President.
(b) By the State Legislature.
(c) By the Ministers of Council of State.
(d) None of the above.

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (b)

See the explanation of the above question.

36. Under which Article of Constitution of India, the Governor has the power to promulgate ordinances during recess of Legislature?

- (a) 155 (b) 156
(c) 212 (d) 213

M.P.P.C.S (Pre) 2018

Ans. (d)

Article 155 - Appointment of Governor. The Governor shall be appointed by the President by warrant under his hand and seal.

Article 156 - Term of office of Governor – The Governor shall hold office during the Pleasure of the President [Article 156 (1)].

Article 212 - prohibits courts from inquiring into proceeding of the legislature.

Article 213 - the Article empowers Governors to promulgate ordinances on urgent matters during the recess of Legislature.

37. Who among the following is not appointed by the State Governor?

- (a) Chief Minister
(b) Members, State Public Service Commission
(c) Judges of High Court
(d) Advocate General

Uttarakhand P.C.S. (Pre) 2012

Ans. (c)

Every Judge of a High Court is appointed by the President by warrant under his hand and seal after consultation with the Chief Justice of India, the Governor of the State, and, in the case of appointment of a Judge other than the Chief Justice,

by the Chief Justice of the High Court. While members of the Public Service Commission and the Advocate General are appointed by the Governor on the advice of the Chief Minister.

38. Consider the following statements and select your answer from the codes given below:

1. The Governor does not have the power to appoint the judge of a state High Court.
2. He is not a part of the Legislature.
3. He has the power to nominate some members in the Legislative Council.
4. He has no judicial powers.

- (a) 1 and 2 are correct
(b) 1 and 3 are correct
(c) 2 and 4 are correct
(d) All are correct

U.P.P.C.S. (Pre) 2017

Ans. (b)

The governor does not have the power to appoint the Judges of a state High Court. According to Article 217(1) the Chief Justice of a High Court is appointed by the President after consultation with the Chief Justice of India and the Governor of the State, and in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the concerned High Court is also consulted. According to Article 171(3)(e), the Governor can nominate some members in the Legislative council. Article 161 empowers the Governor to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence against any law relating to a matter to which the executive power of the State extends. (*) The state Legislature consists of the Governor, the Upper house (if the system is bicameral) and the Lower house.

39. Which one of the following Statements about the State Governors is not true?

- (a) He is a part of the State Legislature
(b) He can pardon a sentence of death
(c) He does not appoint Judges of the State High Court
(d) He has no Emergency powers

U.P.P.C.S. (Mains) 2005

Ans. (b)

According to Article 161, the Governor shall have the power to grant pardons, reprieves, respites or remissions of punishment or to suspend remit or commute the sentence of any person convicted of any offence against any law, but the Governor is not empowered to pardon a sentence of death. All the given statements except statement (b) are accurate.

40. Given below are two statements, one is labelled as Assertion (A) and other is labelled as Reason (R). Choose the correct answer from code given below:

Assertion (A) : “The President or a Governor cannot be sued in a Court of law for any act.”

Reason (R) : “The President can be impeached, and the Governors may be dismissed for unconstitutional acts done.”

Select the correct answer using the code given below:

Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true, but (R) is not a correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

U.P.P.C.S. (Spl) (Mains) 2004

Ans. (d)

As per the Article 361 (2) No criminal proceedings shall be instituted or continued against the president or the Governor of a state in any court during its term of office. But under the provision of 361 (4) civil proceedings can be instituted against the president or the Governor of a state during its term of office after two months of giving written notice. Thus assertion (A) is wrong.

Article 61 of the Constitution mentions the procedure for impeachment of the President. According to Article 156(1), the Governor shall hold office at the pleasure of the President. He may be dismissed for unconstitutional acts. Thus Reason (R) is correct. So the correct answer is an option (d).

41. Consider the following statements :

1. No criminal proceedings shall be instituted against the Governor of a State in any court during his term of office.
2. The emoluments and allowances of the Governor of a State shall not be diminished during his term of office.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre.) 2018

Ans. (c)

*Article 158 deals with the conditions of the Governor's office. It says "the emoluments and allowances of the Governor shall not be diminished during his term of office".

*Article 361 deals with the protection of President and Governors. It says "No criminal proceedings shall be instituted or continued against the President, or the Governor of a state, in any court during his term of office."

42. Which of the following is not true?

- (a) The President or Governor is immune from legal action for official acts.
- (b) No Court can compel a Governor to perform any duty.
- (c) A two month's notice in writing must be delivered to a Governor for bringing civil proceedings in respect of their personal acts.
- (d) Courts are empowered to enquire the advice tendered by the Ministers to the President or Governor.

U.P.P.C.S. (Mains) 2016

Ans. (d)

According to **Article 74(2)**, the question of whether any and if so what advice was tendered by Ministers to the President shall not be inquired into any Court. So, option (d) is not correct while other options are correct.

43. The Constitution of India does not contain any provision for the impeachment of –

- (a) The President
- (b) The Governor of a State
- (c) The Chief Justice of India
- (d) The Vice-President of India

U.P.P.C.S. (Mains) 2009

Ans. (b)

The Governor of a State is appointed by the President by warrant under his hand and seal. He holds the office during the pleasure of the President. The President may be removed from Office by impeachment in the manner provided in Article 61. A Vice-President may be removed from his office by a resolution of the council of states passed by a majority of all the then members of the committee and agreed to by the House of the People (Article 67). Chief Justice of India shall not be removed from his office except by an order of the President Passed after an address by each house of Parliament supported by a majority of the total membership of that house and by a majority of not less than two-thirds of the members of that house present and voting has been presented to the President in the same session for such removal on the ground of Proved misbehavior or incapacity (Article-124(4). A President, Vice –President can be removed for violating the Constitution of India.

Note : Impeachment word is used only to remove the President. It is not used in India for any other authority other than the President.

44. The first lady to become Governor of a State in India -

- (a) Raj Kumari Amrit Kaur (b) Padmaja Naidu
(c) Sarojini Naidu (d) Serla Grewal

Chhattisgarh P.C.S. (Pre) 2003

M.P.P.C.S. (Pre) 1995

Ans. (c)

Sarojini Naidu was the first woman to become the Governor of a State in India. After Independence, she became the Governor of Uttar Pradesh and died in office in 1949. She became the first woman Governor of Uttar Pradesh.

45. Who amongst the following was the first woman Governor of a State in free India -

- (a) Sarojini Naidu (b) Sucheta Kripalani
(c) Indira Gandhi (d) Vijay Laxmi Pandit

U.P.P.C.S. (Mains) 2013

Ans. (a)

See the explanation of the above question.

46. 13th February is celebrated Women's Day every year in the memory of -

- (a) Indira Gandhi (b) Kamla Nehru
(c) Sarojini Naidu (d) Rani Laxmi Bai

U.P. P.C.S. (Pre) 2002

Ans. (c)

The National Women's Day of India is observed every year on 13 February. This day is observed on the birth date of India's first woman Governor Sarojini Naidu. She was born on 13 February 1879 and died on 2 March 1949.

47. Who was the first lady Governor of West Bengal?

- (a) Vijay Laxmi Pandit (b) Padmaja Naidu
(c) Rajani Rai (d) Sheila Kaul

Chhattisgarh P.C.S. (Pre) 2005

Ans. (b)

Padmaja Naidu was the daughter of Sarojini Naidu. After independence, she became the first female Governor of West Bengal (1956-1967). At the same time Chakravarti Rajagopalachari was the first Governor of West Bengal. At present, C.V. Ananda Bose is the Governor of West Bengal from November 17, 2022.

48. Who was the first Lady Governor of Madhya Pradesh?

- (a) Sarla Grewal (b) Nandini Satpathy
(c) Anandiben (d) Droupadi Murmu

M.P.P.C.S. (Pre.) 2022

Ans. (a)

Sarla Grewal was the first female Governor and served from 1989-1990 as 9th Governor of Madhya Pradesh. She was also the second female Indian Administrative Service officer, joining in 1952. Smt. Droupadi Murmu was sworn in as the 15th President of India on 25 July, 2022. Previously, she was the Governor of Jharkhand from 2015 to 2021.

49. Which of the following Governors of Madhya Pradesh have not been the members of the Constituent Assembly of India?

1. H.V. Pataskar
2. Niranjana Nath Wanchoo
3. Satyanarayan Sinha
4. K.C. Reddy

Select the correct answer using the codes given below:

Codes:

- (a) Only 1 and 2 are correct
(b) Only 2 and 3 are correct
(c) Only 1 and 4 are correct
(d) Only 3 and 4 are correct

M.P.P.C.S. (Pre), 2021

Ans. (*)

H.V. Pataskar, K.C. Reddy and Satyanarayan Sinha have been members of the constituent assembly of India, however Niranjana Nath Wanchoo Governor of Madhya Pradesh have not been members of the Constituent Assembly of India. Thus none of the option is correct.

50. Who among the following Governors of Madhya Pradesh has been the Chief Minister of Haryana?

- (a) Ram Prakash Gupta
(b) Ram Naresh Yadav
(c) Dr. Balram Jharkhar
(d) Dr. Bhagwat Dayal Sharma

M.P.P.C.S. (Pre) 2020

Ans. (d)

Dr. Bhagwat Dayal Sharma was the first chief minister of Haryana (1966-67). He served as governor of Madhya Pradesh from 1980-84. He served as governor of Odisha also since 1977-80 AD.

51. Which of the following statement is not correct regarding the Governor of Rajasthan?

- (a) On the basis of the recommendation of the States Reorganisation Commission, the institution of Rajpramukh was abolished.
(b) The institution of Rajpramukh was abolished by the 7th Constitutional amendment.